

Ten checks before you sign

An inspection template for cohort program enrollment agreements.

I was charged \$3,000 for a twenty-eight-week program, withdrew about a third of the way through, and was told my refund was zero. That was later corrected, in writing. I declined to keep the money and directed it elsewhere. I am not selling anything and there is nothing to buy.

This is the check I wish I had run before I signed.

It takes about twenty minutes. Open your enrollment agreement, have the program calendar next to it, and answer ten questions. A **FAIL** does not mean a program is bad, or that anyone has done anything unlawful. It means a question has not been answered, and you are entitled to ask it before you pay.

The checks

1 · Does any refund survive the first class? Find the refund schedule. Find the date of the first *instructional* session — not orientation, not onboarding, not a welcome call. Compare them. **FAIL if** every refund tier closes on or before the first day of instruction. If so, no participant who attends a single session can receive a refund at any point in the program.

2 · Is there a pro rata provision? Search the document for *pro rata, prorated, proportional, unearned*. **FAIL if** absent. Without it, money is not returned in proportion to what was not delivered, no matter when you leave.

3 · Is there a right to cancel? Search for *cancel*. **FAIL if** absent. A refund schedule is not a cancellation right. Many agreements have the first and not the second.

4 · If you leave, do you still owe? Search for *balance, remaining, payment plan, continued contribution*. **FAIL if** an unpaid balance survives your withdrawal. Under that structure, leaving costs money you have not yet paid, for instruction you will not receive.

5 · Must a decision about you be given in writing, with a reason? Refund determinations, scholarship denials, removal, suspension. **FAIL if** absent. A determination that need never be communicated cannot be checked, appealed, or corrected.

6 · Is there an appeal? From any denial, to anyone. **FAIL if** absent. Without one, every outcome depends on who is listening that week.

7 · Is there a written hardship procedure? Not a person to email. A written procedure with a defined institutional response. **FAIL if** absent. If the only route is a sympathetic individual, the support exists at their discretion and disappears with their capacity.

8 · What is the load rating? Scheduled hours per week. Which are required and which are optional. What happens if you miss. Whether you may be assigned an unpaid role — peer leadership, pod navigation, mentoring other participants — and whether that is disclosed before you sign. **FAIL if** the time and energy cost of participation is not stated anywhere in writing. Every elevator has a posted load rating. Programs that ask for seven months of your life generally do not.

9 · Who takes the money? Compare the entity named on the payment page or invoice with the entity making the promises in the marketing and the agreement. **FLAG** if they are different. That is often ordinary — fiscal sponsorship, a contracted operator, a licensed program — and you should be able to learn which, in writing, before you pay.

10 · What is the total charge? Write down the list price, not your discounted price. Note whether any prerequisite program is required. **Record it.** In several states, the list price determines whether the program is regulated at all.

Reading your result

Zero fails. Rare, and worth telling other people about.

One or two fails. Ask about them in writing before you pay. Keep the answer.

Three or more. The agreement was very likely assembled rather than designed. That is common and it is not an accusation. It does mean the document will not protect you, and that whatever protection exists depends on the goodwill of specific people continuing to have capacity.

Ask anyway. Ask in writing. Keep the reply.

If you have already signed and something has gone wrong

Four moves. About an hour. No expertise required. In order.

1 · Write down what you were told, and when. Dates, times, exact words. No interpretation, no account of how it felt, no argument. Just the record. Almost nobody does this, and it puts you ahead of almost everyone.

2 · Ask one question their own records can answer. Not *was this fair*. Not *why did this happen*. One question answerable from documents they already hold. *What is the accounting entry for the money I paid, and what portion was earned?* A question answerable from their own files is expensive to refuse.

3 · Waive recovery, in one sentence, in writing. *I am not seeking money.* It costs you what you were unlikely to collect anyway, and it changes how every sentence after it is read — by them, and by anyone who reads the thread later.

4 · Find the office that oversees this, and put it on the cc line. Not a threat. A disclosure, stated plainly: *I have copied the office that oversees this.* This persuades no one of anything. It changes which response is cheaper.

Where to route a failure

In California, private postsecondary programs are regulated by the Bureau for Private Postsecondary Education (bppe.ca.gov). Education Code § 94920(d) requires a pro rata refund of unearned institutional charges for a student who completes 60% or less of the period of attendance. Programs charging \$2,500 or less in total may be exempt; so may programs that are solely avocational. Whether a given program is covered is the Bureau's determination, not yours, and you may file and let them decide.

In other states, look for your state's private postsecondary regulator, higher education commission, or department of consumer affairs.

If a nonprofit is involved anywhere in the arrangement, your state Attorney General's charities division oversees charitable solicitation and the stewardship of donated funds. In California that is the Registry of Charities and Fundraisers.

Anyone may file, including someone who has already been made whole.

This is not legal advice. It is a list of questions, and the questions are the point. The statutory references are California; the checks are not.

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